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No 8. Peking, October 14, 1874.

Your Excellency:

In compliance with instructions, I now beg to hand you my Memo. No 85, which was forwarded to his Excellency, Okuma Toshimichi, H. I. J. M's High Commissioner, at his request, on the 19th of last month.

I have the honor to be,

Your Excellency's

Most Obedient humble Servant,

Chas. W. LeGendre

His Excellency

Okuma Shigenobu,

Minister of Colonization.

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Memo. No. 35.

British and American Expeditions to Aboriginal Formosa in 1867, and the Letter from the Tsung li Yamên to H.B.J.M's Minister of Foreign Affairs of the 26th day, 3rd Moon, 13th Year of Tung-Che.

The crew of the American barque "Rover" were murdered by the Koaluts at the Southern end of the island of Formosa in March, 1867.

On receiving intelligence of this massacre, Captain Broad, in command of H.B.M's Gunboat "Cormorant" which happened to be at Takao at the time, in

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company with the British Consul, Mr. Carroll, went down the coast to buy and ransom such of the crew as might have survived (25th of March, 1867.). On the 26th he attempted to make a landing in front of the Koalute territory, but was fired upon by the savages and returned to his ship with one man wounded. Then, from his ship he shelled the Koalute, making great havoc among them. (See U.S. Diplomatic Correspondence, 1869, Mr. Allen to Mr. Seward, April 7th, 1869.)

In a despatch dated April 23d, 1867, the U.S. Minister at Peking, Mr. Burlingame, instructed the U.S. Consul at Amoy to thank both Captain Broad and Mr. Carroll for what they had done, as follows: "I beg you to "thank in the name of our Government, the British Consul, etc. etc."

Has the Chinese protested against the joint action of Captain Broad and Mr. Carroll, surely their protest would have been communicated to the American Minister, who, in such a case, certainly would not have tendered thanks to them for what it would have been his duty to consider as a violation of the laws of nations.

It can easily be ascertained from Mr. Wade that, in fact, no such protest was ever entered by the Chinese. But failing this, a good proof may be found in what afterwards occurred between Commander Febiger, U.S. Navy, and the Governor of Chinese Formosa, and also in the fact that, a few months later, this same governor allowed Admiral Bell, of the U.S. Navy, to do at Kwaliang Bay precisely the same thing that Captain Broad had done there.

I will first state what relates to Commander Febiger.

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I read in the Report of the U. S. Secretary of the Navy for 1867, pages 7, 8, and 9:

"Commander Febiger, with the 'Ashuelot,' "was ordered to proceed to the locality in "question, gain what information he "could in reference to the affair, and * *. "On his arrival at Taiwanfoo in April, "Commander Febiger required of the three "principal authorities of the island an "immediate investigation of the outrage, the "seizure and punishment of those implicated, "and * * *. The authorities expressed much "interest in the case, and indicated a desire "to obtain all information possible, and to "punish those who were engaged in it. But "they claimed to be unable to bring to justice "the perpetrators of the crime, who belonged "to a horde of savages that were not obedient "to their laws". (or, word for word, That place not yet entered in maps of China.)

Now has the Chinese Government protested against the action of Captain Broad and the British Consul, on the ground that it constituted a violation of their territory, would the Governor of Formosa, after the issuing of the protest, have made such a declaration as this?

I now come to what relates to Admiral Bell.

The U.S. Secretary of the Navy, in his Report to the President, dated December 2nd, 1867, page 5, says:

"Rear Admiral Bell was not disposed that "so great a crime" (that is, the murder of his countrymen) "should pass unpunished, and he "therefore left Shanghai in June with the "'Hartford' and 'Wyoming' for the purpose of "destroying, if possible, the lurking places "of the savages who had murder the crew of "the 'Rover'."

Now if the Chinese Government has protested against the expedition of Captain Broad,

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as relates above, the British Minister at Peking would certainly have informed H.B.M's Consul in Formosa, Mr. Carroll, of that fact, and the latter gentleman would have been very careful not to become guilty of a new breach of international law by again entering the country of the aborigines with an armed force. As it was, however, when Admiral Bell arrived at Takao, Mr. Carroll begged privilege to accompany the expedition as may be proved by the Report of the U. S. Secretary of the Navy, 1867, quoted above, page 8, which says: -

"When he" (Admiral Bell) "reached Takao, "he received on board Mr. Pickering, × × × "Mr. Taylor - × × and Her Britannic Majes-"ty's Consul, Charles Carroll Esquire, who "were anxious to accompany the expedition."

As to what Mr. Carroll and friends did while with the said expedition, the Commander of the landing party informs us:

"The British Consul at Takao, Formosa, "and Messrs. Taylor and Pickering, English "subjects residing at that place, accompa-"nied the expedition as volunteers, and rendered "good service, being generally at the front". (See the Report of the Secretary of the Navy, 1867, quoted above, page 58. - Commander Belknap's report.)

"On the 13th of June the vessels anchored "within half a mile of the shore, and one "hundred and eighty one officers, sailors and "marines were landed × × × ×. The "detachment pursued them" (the savages) "out "of sight of the ships until 2 P.M., when they "halted to rest. While thus resting, the sav-ages covertly approached and fired upon the "party. Lieutenant Commander Mackenzie "× × × fell mortally wounded by a musk-"ket ball, and died while being borne to "the rear. × × × Several of the officers and "men experienced severe sun-strokes × × ×

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and Commander Belknap determined to return to the ships.

The experience obtained demonstrated the inutility of such an expedition * * * by sailors unaccustomed to ambuscades and bush life. No troops could have exhibited more bravery, but the warfare was one to which sailors are not adapted. These considerations and the prostrated condition of his men decided Rear Admiral Bell to make no further attempt by again landing his force." (See the Report of the Secretary of the Navy, 1867, quoted above, pages 8 and 9.)

It has been said that, in this case, the Admiral acted without instructions. The reverse, however, can easily be proved. In the first place, we must remember that, in 1867, there was no telegraphic communication between America and either Japan or China, nor even was there a regular line of steamers such as is now plying between Shanghai,

Yokohama and San Francisco, in operation, and that it then took four months to write to, and receive an answer from, the United States. The Government had foreseen that, under such circumstances, there would be cases in which the Admirals could not, without injury to the service, afford such delays; and therefore general instructions had been sent to China authorizing the Admirals to act upon their own responsibility, and before the arrival of special instructions, such as would be issued in other cases. It was in compliance with such instructions that the Admiral went to Formosa. This clearly appears from this letter to the Secretary of the Navy, dated June 19th, 1867, from which an extract is here given.

"Sir: I have the honor to report to the "Department that, in accordance with my in- "structions No 46, current series, under date of "3rd June last, I left Shanghai on the 7th

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"instant, in the 'Hartford', accompanied by
"the 'Wyoming' × × × for the South end of
"the Island of Formosa, to destroy, if possible,
"the lurking places of the band of savages inhabiting
"the south-east end or point of that island, and
"who murdered, in March last, the shipwrecked
"officers and crew of the American bark 'Rover'."
(See the Report of the Secretary of the Navy,
1867, quoted above, page 54.)

Now the question is, did the Admiral act
in act in accordance with the instructions
referred to in the above letter?

If the Secretary of the Navy had thought that
the Admiral had acted in violation of his
instructions, he would have said so in his re-
port to the President. But he did not say so; and
the fact that, in his report, he said that the
Admiral had done, in this case, all that could,
under the circumstances be expected of him,
shows that he acted in accordance with his
instructions and that his action was approved.

(See above, page 8, lines 3 to 11.)

Nor is this all. While Admiral Bell was
thus operating in Aboriginal Formosa, in
compliance with general instructions, the
views of the Government of the United States
were forwarded to the U. S. Minister at Peking,
by the U. S. Secretary of State, Mr. Seward, in
a despatch dated June 20th 1867, which is to be
found in the Diplomatic Correspondence for
1867-8. Vol. 1, page 498, and which reads
as follows:

"You are instructed to report whether the Chinese
"Government is established in any or in what
"degree in the region where the atrocious transaction
"took place. If clearly so, then to demand investiga-
tion and punishment, with such indemnities as are possible.

"If no organized government exists, you will
"suggest what form of proceeding should be adopt-
ed with a view to obtain redress and prevent
such transactions in future."

That is to say, if no organized government

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existed in Aboriginal Formosa, the fact that it was on one of the great maritime thoroughfares of the world, necessitated the establishment of one there, to which end Mr. Burlingame was instructed to suggest what form of proceeding should be adopted.

That the minister would have been justified, according to international law, in suggesting, as the proper mode of proceeding to adopt that the country should be organized under some foreign rule if China should refuse to organize it herself, is clearly intimated in the fourth paragraph of the instructions, quoted above, from Mr. Seward, one of the greatest statesmen that ever lived, to Mr. Burlingame. It reads as follows:

"Fourth. You are advised that in no "case does the United States desire to seize "and hold possession of Formosa, or any "part of said island."

In accordance with the spirit of these

very same instructions, the issuing of which he had anticipated, Admiral Bell, having ascertained that Aboriginal Formosa was settled by semi-civilized tribes, who were obedient to no regularly constituted state, and from whom neither redress nor protection could be obtained until the region should be put under the rule of some responsible power, he suggested China, who already had a foothold in the island, as being the most suited to accept the task. Therefore he wrote to the Secretary of the Navy, under date of 19th June, 1867:

"The only effectual remedy against the "barbarous outrages on shipwrecked men "by this tribe, who are not numerous, will be "for the Chinese Authorities on the Island to "occupy this bay with a settlement of their "own, protected by a military force, which may "be effected through the influence of our Min-"ister at Peking." (See the Report of the

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Secretary of the Navy, 1867, quoted above, page 6-5.)

The recommendation of the Admiral having been communicated to the President, was approved by him; and Mr. Seward, on the 23rd of August, 1867, informed the Minister at Peking of this fact in the following words:

"The President desires that you will "confer with the representatives of the "Western Powers at Peking, and, in cooperation "with them, if it shall be practicable, earnestly "urge upon the Emperor's Government the pol-"icy suggested by Admiral Bell. (See U.S. Diplomatic Correspondence, 1867-8. Vol. 1, page 507.)

But the Chinese have never complied with this recommendation. On the contrary, on the 26th day, 3rd month, 13th year of Tung Che, the Tsung li Yamên wrote the Minister of Foreign Affairs of Japan

as follows:

"Formosa is an island lying afar off "amidst the sea, and we have not yet re-"strained the savages inhabiting it by any "legislation, nor have we established any "government over them."

And further, in the same despatch, the Tsung li Yamên inform Mr. Terashima that, when the Japanese Embassador notified them of the intention of Japan to despatch an expedition to Aboriginal Formosa, they had received this announcement as "a token "of the good relations between China and "Japan, and all distrust, if any, was at "once cleared away on both sides".

Is it possible that China could have supposed that Japan would give her best blood and her treasure to the task of pacifying Aboriginal Formosa without the expectation of receiving some correspond-ing recompense in return? Surely not.

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What then can be the new and expected?
Certainly either the annexation of the tranquillized region to the Empire of Japan, or else the payment of an indemnity corresponding to the magnitude of the task performed.

Peking, September 19th, 1874.

Respectfully submitted.
(Signed) Chas. W. Le Gendre.

His Excellency
Okubo Toshimichi,
H.I.J.M's High Commissioner,
etc. etc. etc.

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